

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
JOHN RAMOS,

Plaintiff(s),

-against-

SUMMONS

Plaintiff resides at:
428 W 26th St., Apt 2J
New York, New York 10001

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
FREDERIC ORTIZ, TAX REGISTRY #935440 OF
THE 10TH PRECINCT and POLICE OFFICER KENDRICK
VICTORIA, TAX REGISTRY #943927 OF THE 10TH
PRECINCT,

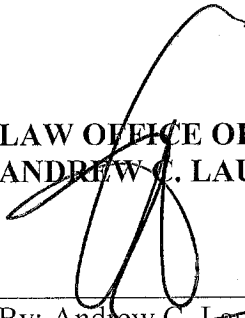
Defendant(s),
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
March 26, 2013


**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER FREDERIC ORTIZ, TAX REGISTRY #935440
OF THE 10TH PRECINCT
230 West 20th Street
New York, New York 10011

POLICE OFFICER KENDRICK VICTORIA, TAX REGISTRY #943927
OF THE 10TH PRECINCT
230 West 20th Street
New York, New York 10011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
JOHN RAMOS,

Plaintiff(s),

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
FREDERIC ORTIZ, TAX REGISTRY #935440 OF
THE 10TH PRECINCT and POLICE OFFICER KENDRICK
VICTORIA, TAX REGISTRY #943927 OF THE 10TH
PRECINCT,

Defendant(s),

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff was a resident of the County of New York, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendants, POLICE OFFICER FREDERIC ORTIZ, TAX REGISTRY #935440 OF THE 10TH PRECINCT and POLICE OFFICER

KENDRICK VICTORIA, TAX REGISTRY #943927 OF THE 10TH PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff.

6. That a hearing was not held by the City pursuant to municipal law 50H.

7. That at all time herein mentioned the officers were acting within the scope and course of their employment with the New York Police Department, and under color of state law.

8. That at all times herein mentioned, all of the actions of the officers alleged herein was done within the scope and course of his employment with the New York Police Department, and under color of the state law.

9. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION

10. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

11. That on or about June 26, 2012, at approximately 6:30 P.M., at 29th Street, between 8th and 9th Avenue, New York, New York, in the County of New York, City and State of New York, its agents, servants and employees, including but not limited to Police Officer Frederic Ortiz, Tax Registry #935440 of the 10th Precinct and Police Officer Kendrick Victoria, Tax Registry #943927 of the 10th Precinct, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

12. That the aforesaid arrest, detention and imprisonment continued at the 10th Precinct and elsewhere.

13. That the said arrest, detention and imprisonment was caused by the City, its agents, servants and employees, including but not limited to the police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

14. That the city, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

15. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and his business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

SECOND CAUSE OF ACTION

16. Plaintiff repeats and realleges each and every allegation contained in the First Cause of Action as if fully set forth at length herein.

17. That immediately prior to and during the course of his arrest and detention, plaintiff was assaulted and battered by said police officers.

18. That the reason of the aforesaid, plaintiff sustained personal injuries, endured and will endure pain and suffering and loss of enjoyment of life, and economic loss, and was otherwise damaged.

THIRD CAUSE OF ACTION

19. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third Causes of Action as if fully set forth at length herein.

20. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

FOURTH CAUSE OF ACTION

20. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third and Fourth Causes of Action as if fully set forth at length herein.

21. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC sec.1983 by those who, under color of a statute or regulation of a state, caused plaintiff to be so deprived.

22. That the aforesaid actions by the detective officer were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals were engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

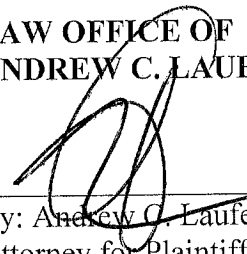
23. That defendants herein, their agents, servants and employees, motivated in part by racial and/ or ethnic animus, conspired to deprived plaintiff of his federal civil and constitutional rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the

jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
March 26, 2013

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

INDIVIDUAL VERIFICATION

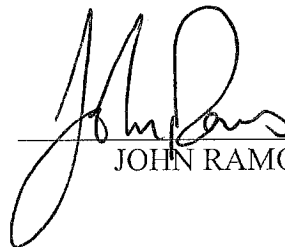
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOHN RAMOS, individually, being duly sworn, deposes and states as follows:

I am the Plaintiff in the above-entitled action and therefore am fully familiar with the circumstances surrounding this situation. I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

Dated: New York, New York
 March 1, 2013

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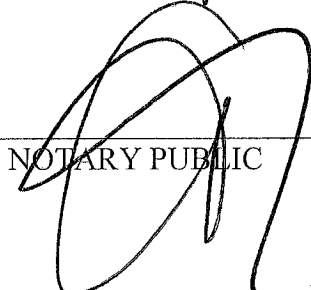


JOHN RAMOS

Sworn to and subscribed before me
on the 1, day March, 2013

April

NOTARY PUBLIC


Andrew Charles Laufer
Notary Public, State of New York
No. 01LA5087616
Qualified in Nassau County
Commission Expires Nov. 03, 2013

JOHN RAMOS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
FREDERIC ORTIZ, TAX REGISTRY #935440 OF
THE 10th PRECINCT and POLICE OFFICER KENDRICK
VICTORIA, TAX REGISTRY #943927 OF THE 10th
PRECINCT

Defendants,

SUMMONS:

Plaintiff resides at:
428 W 26th St., Apt 2J
New York, New York 10001

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer